GOVERNMENT OF ODISHA

HEALTH & FAMILY WELFARE DEPARTMENT

***

RESOLUTION

No.HFW-MEII-MISC-0128-2019- 2298 **/H, Date-** 29.01.2024

Sub: Execution of bond by candidates, while taking admission to different medical courses in the State.

Where as there is a dearth of doctors in the State and there is a reluctance to serve the State after completion of course amongst the doctors studying in different Government Medical/Dental Colleges at the cost of State exchequer, in order to overcome the dearth, Government after careful consideration have been pleased to modify the existing policy for execution of an agreement in shape of Bond with the objective to retain the passing out doctors to utilize their services in the greater interest of the State.

This earlier resolutions/ orders/ executive instructions/ guidelines issued or notified in this regard shall stand modified accordingly.

1. **The Bond conditions shall be as follows:**
   a. Bond shall be applicable for all candidates taking admission in Government Medical Colleges, either under State Quota or All India Quota in PG DIPLOMA / DIPLOMATE NATIONAL BOARD (DNB) / DOCTORATE NATIONAL BOARD (DrNB) MD/ MS/ MDS/ DM/ M.Ch. courses or any other courses as may be adopted in State and notified from time to time.
   b. No admission of any kind shall be done without submission of Bond and shall be ensured by DMET, Odisha.
   c. After completion of any of the above courses, the candidates shall have to serve in any health institution of the State for two years.
   d. After completion of two years of service as per bond provision, the direct as well as in-service doctors will be released from bond conditions.
   e. The Certificates shall not be retained henceforth by the College Authorities and may be released after the admission is over.
   f. In case a candidate gets opportunity for higher study immediately after completion of course, the bond seizes to operate and will come in to force after return from study. They shall submit a declaration in the form of an affidavit before JMFC as per format enclosed in **Appendix-1**, to that effect. Copy of such affidavit shall be sent to DHS and DMET Odisha. Higher study for above condition shall mean pursuing any course after MBBS/BDS like Post graduation, Super specialty or post-doctoral courses which are included in the Regulations of MCI/NMC. Higher study shall not include any residency or fellowship course outside State.
   g. The State Medical Council (OCMR) shall not release the NOC for doing registration in any other State unless it receives a clearance from the DMET, Odisha as regards to the fulfilment of bond conditions.
   h. Participation in selection process for residency / contractual / regular faculties for Medical Colleges inside the State of Odisha under the

State Government or PSU shall be allowed.

i. Any service or training after PG (Senior Resident / Tutor / Faculty in Medical Colleges/ Medical Officer in PSUs or other departments) inside State under the State Government shall be counted towards Post PG Bond service.

j. State Government reserves the right to give or deny appointment. In case no appointment is given by State Government within six months of completion of course, the students shall be released from bond conditions and the bond lapses.

k. The Private Health Care Institutions registered under Odisha Clinical Establishment (Control & Regulation) Act,1990 and subsequent Amendments thereunder, shall not engage any Doctor unless they obtain an affidavit from the concerned doctors duly sworn in before an Executive Magistrate to the effect that they are not violating any Bond Provision for the post PG Service and have fulfilled all the bond conditions.

l. Monetary Penalty for defaulters (for not serving in state for two years after completion of course) shall be double the amount of stipend/salary received during study period.

j. Candidates leaving the course before completion of the course leading to lapse of a seat shall be liable for monetary penalty of Rs. 10 lakh and the amount of stipend / salary received by the date of such leaving the course.

k. In case of non-payment of penalty, recovery procedure shall be initiated against the defaulters violating the bond conditions as per Odisha Public Demand Recovery Act, 1962.

2. **Procedure for execution of bond and its follow up:**

a. The bonds are to be prepared on non judicial stamp paper of Rs. 21.00 and will not be registered.

b. The bond should be signed by the candidate, two sureties (parents / guardian) and the Dean & Principal of the concerned institution.

c. Bonds shall be collected centrally at the time of provisional admission by the selection committee, and to be handed over to respective institution after final admission.

d. After completion of course, the copy of bonds shall be transmitted to DHS & DMET, Odisha, for reference during placement.

e. All the candidates (direct/ in- service) shall submit the bond in the format annexed at **Annexure - A**. In addition, in-service candidates (temporary/permanent) availing study leave shall also submit bond as per FDOM 6874/F, dated 20.02.1996 as per applicability.

ORDER: Ordered that this resolution shall be published in the next issue of Odisha Gazette for general information.

By order of the Governor

29/1/24

Additional Secretary to Government

Memo No. 2299 /H., Date 29.01.2024

Copy forwarded to the Director, printing, stationery & publication Odisha, Madhupatna, Cuttack for publication of the above notification in the next issue of Odisha Gazette and supply 10 copies of the same to this Department at an early date.

29/1/24

Additional Secretary to Government

Memo No. 2300 /H., Date 29.01.2024

Copy forwarded to the Assistant Director General Health Services, Government of India, Ministry of Health & FW (Medical Examination Cell), Nirman Bhawan, New Delhi, for information.

29/1/24

Additional Secretary to Government

Memo No. 2301 /H., Date 29.01.2024

Copy forwarded to the Dean & Principals of all Govt. Medical / Dental Colleges for information and necessary action.

29/1/24

Additional Secretary to Government

Memo No. 2302 /H., Date 29.01.2024

Copy forwarded to all Departments / all Heads of Departments / all CDMOs / all sections of Health & FW Department for information and necessary action.

29/1/24

Additional Secretary to Government

Memo No. 2303 /H., Date 29.01.2024

Copy forwarded to the Head of Portal Group, IT Centre, Secretariat for information with request to post this order in the website www. Orissa.gov.in/ health portal, for general information.

29/1/24

Additional Secretary to Government

ANNEXURE – 'A'

BOND BY THE CANDIDATE AT THE TIME OF TAKING ADMISSION INTO PG DIPLOMA/ DNB/ DrNB/ MD/MS/MDS / DM/ MCH COURSE IN GOVERNMENT INSTITUTIONS OR MEDICAL COLLEGES OF THE STATE OF ODISHA (OR ANY OTHER COURSE AS MAY BE NOTIFIED)

KNOW ALL MEN BY THESE PRESENTS THAT WE..... son/ daughter/ wife of..... Aged about..... years resident of..... in the district..... at present admitted..... in ..... Medical College, ... (here in after called the Principal Obligor) and Shri/ Smt..... aged about..... years daughter/ son/ wife of..... Resident of..... in the district of..... at present employed as..... in the Office / Department of .....and Shri/ Smt..... Daughter/son/wife of..... aged about .....years of resident of ..... in the district of..... at present employed as ..... in the Office / Department of..... (hereinafter called "the surety") do here by jointly and severally bind ourselves and our respective heirs, executors and administrators and legal representative to pay the Governor of Odisha, his successors and assigns (hereinafter called "the Government") on demand, the amount equivalent to double the amount of stipend/salary for three years of study that the Government incurs on account of a candidate having been placed on PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course till completion of the said course.

WHEREAS the Above Principal Obligor is placed on admission into PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course and admissible by the Government;

AND WHEREAS for better protection of the healthcare of the Government in the State, the Principal Obligor has agreed to execute this bond with such condition as hereunder written;

AND WHEREAS the said surety has agreed to execute this bond as surety for the discharge of the above burden of the amount equivalent to double the amount of stipend for three years of study by the Principal Obligor.....

NOW THE CONDITION OF THE ABOVE WRITTEN BOND is that in the event of successful learning and completion of PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course and obtaining registration thereof the Principal Obligor.....is to render two years of service in the State of Odisha. In case the Principal Obligor fails to comply due to any reason, the Principal Obligor is liable for refund of an amount equivalent to double the amount of stipend/salary received for three years of study, to the Government of Odisha.

Appointment under the State Government after successful completion of PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course shall mean and include

regular appointment through OPSC or Adhoc appointment or Contractual appointment etc. Once an appointment (any one of the above type) is given, the candidate shall have to join within 30 days from the date of receipt of the appointment order failing which, he /she will be required to pay the amount as calculated above.

Further in the event of leaving the course due to any reason before the completion of PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course, leading to lapse of a seat, the Principal Obligor.....is liable for refund of an amount of Rs. 10.00 lakhs (Rupees ten lakhs) and all the stipend or salary received till the date of leaving the course, to the Government of Odisha.

AND UPON in Principal Obligor.....

and..... the surety (ies) as aforesaid making such refund, the above written obligation shall be void and of no effect, otherwise it shall be and remain in full force and virtue and it is agreed and declared by the Principal Obligor and the surety (ies) that in the event of default without prejudice to other remedies that the Government may adopt, the Government shall be entitled to recover the aforesaid amount from the Principal Obligor and the Sureties jointly and severally in the form of public demand under the Odisha Public Demand Recovery Act, 1962.

Save and except death, permanent disability or selection for higher study under no circumstances, the Principal Obligor can forgo the appointment and posting and if it so happens, he shall be liable to refund the money amounting to the amount equivalent to double the amount of stipend/salary for three years of study.

PROVIDED that the liability of the surety hereunder shall not be impaired or discharged by reason of time being granted by the Government or by any forbearance, act or omission on the part of the Government or any person authorized by it (wherever with or without the consent or knowledge of the surety nor shall it be necessary for the Government to sue the said Principal Obligor before suing the above bounden surety..... on any of them for the amount due hereunder.

Provided further that, in case of selection for higher study this bond will be seized to be operative till the study is completed and will be deemed to be in force on the date of completion of higher study and accordingly, all the above mentioned clauses will be in operation for all purposes.

NB: **a.** The Higher study shall mean pursuing any course after MBBS/BDS like Post graduation, Superspeciality or post-doctoral courses which are included in the Regulations of MCI/NMC. Higher study shall not include any residency or fellowship course outside state.

b. Participation in selection process for residency / contractual / regular faculties for Medical Colleges inside the state of Odisha under the State Government or PSU shall be allowed and the certificates shall be released.

c. Any service or training after PG (Senior Resident / Tutor / Faculty in Medical Colleges/ Medical Officer in PSUs or other departments) inside state under state Government shall be counted towards post PG Bond service.

In witness to the written bond and to all term and conditions hereinbefore contained we have signed hereunder this..... Day of..... 20...

Signed and delivered by the Principal Obligor

Surety: 1. Signature

Name & Address

Surety: 2. Signature

Name & Address

Signed and delivered by the surety above named

In presence of witnesses

Witness: 1. Signature

Name & Address

Witness: 2. Signature

Name & Address

ACCEPTED

for and on behalf of the GOVERNOR OF ODISHA

Dean & Principal,

..... Medical College,

APPENDIX- 1

AFFIDAVIT

(Before the Judicial Magistrate First Class)

(For candidates selected for higher study immediately after completion of Post Graduation)

I Dr. ..... aged about ..... son/daughter of Sri ..... residence of ..... .do here by solemnly affirm and state as follows:-

1. That I was admitted to the PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course (strike out which is not applicable) in the subject ..... in the ..... college in the academic session ..... / .....
2. That I had executed a bond with bond condition to serve the state for two years after completion of the course failing which I will be liable to pay a monetary penalty equivalent to double the amount of stipend/ salary received by me during the period of three years of study.
3. That I am aware that in case of exigency I may be deployed in any post as and when required.
4. (tick which one is applicable from the following)
   1. That after the completion of my course on Dt. ..... I am again selected for higher study in ..... subject in ..... Medical College, in the academic session ..... / .....
   2. That I want to participate in the selection process for ..... and if I am not selected I will submit all my documents received to the authority and continue in the bond service to fulfil the conditions of bond.
5. That the higher study course is a ..... years course and I will complete it in the year ..... and that this course satisfies the conditions mentioned in Bond format and Resolution.
6. That I undertake that after completion of the higher study course I will serve the state for two years and in case of default all the conditions of the bond executed earlier will be applicable to me including the monetary penalty.
7. That this affidavit is made for submission before the concerned authority as and when required.
8. That, the contents of this affidavit are true to the best of my knowledge and belief.

DEPONENT

(NB: To be typed on appropriate stamp paper)